

26LBCV00304 26LBCV00304

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Case Number: 26LBCV00304 Hearing Date: August 4, 2026 Dept: S28

BACKGROUND

On

February 5, 2026, Plaintiff Pamela Pieroni, by and through her successor-in-interest, Dawn Genis ("Plaintiff") commenced this action against Defendants Global Regency Senior Care Services, LLC and Global Premier Regency Palms, LP ("Defendants") alleging elder abuse and negligence.

On March 12, 2026, Defendants filed the instant Motion to Compel Arbitration.

On March 24 2026, Plaintiff filed opposition to the Motion to Compel Arbitration.

On

April 7, 2026, Plaintiff filed ex parte to compel the production of Plaintiff's complete record from Defendants. The Court denied this application and set a noticed motion hearing.

On

May 6, 2026, Defendant filed opposition to Plaintiff's Motion to Compel Production.

On

May 12, 2026, Plaintiff filed a reply in support of the Motion to Compel Production.

On June 17, 2026, Defendants filed a reply in support of the Motion

to Compel Arbitration.

On June 24, 2026, the Court ordered the parties to file supplemental briefing on the issue of whether Plaintiff Pamela Pieroni was deemed "incapacitated" for the purposes of her Power of Attorney being in effect, at the time of April Pieroni signing the Arbitration Agreement on Plaintiff's behalf.

On July 20, 2026, Defendants filed their supplemental brief in support of the motion to compel arbitration.

On July 28, 2026, Plaintiff filed their supplemental brief in opposition.

DISCUSSION

1. Motion to Compel Arbitration

Applicable Law

Under both the Federal Arbitration Act and California law, arbitration agreements are valid, irrevocable, and enforceable, except on such grounds that exist at law or equity for voiding a contract. (*Winter v. Window Fashions Professions, Inc.* (2008) 166 Cal.App.4th 943, 947.) In ruling on a motion to compel arbitration, the court must first determine whether the parties actually agreed to arbitrate the dispute, and general principles of California contract law help guide the court in making this determination. (*Mendez v. Mid-Wilshire Health Care Center* (2013) 220 Cal.App.4th 534, 541.) "With respect to the moving party's burden to provide evidence of the existence of an agreement to arbitrate, it is generally sufficient for that party to present a copy of the contract to the court." (*Baker v. Italian Maple Holdings, LLC* (2017) 13 Cal.App.5th 1152, 1160.)

The right to compel arbitration exists unless the court finds that the right has been waived by a party's conduct, other grounds exist for revocation of the agreement, or where a pending court action arising out of the same transaction creates the

possibility of conflicting rulings on a common issue of law or fact. (Code Civ. Proc., § 1281.2(a)-(c).)

Analysis

A. Whether

April Pieroni Had Authority to Bind Pamela Pieroni to the Agreement

Plaintiff Pamela Pieroni, by and through her successor-in-interest, Dawn Genis, commenced this action against Defendants Global Regency Senior Care Services, LLC and Global Premier Regency Palms, LP alleging elder abuse and negligence. At issue is the enforceability of an arbitration agreement contained in a residential agreement that Pamela's daughter April Pieroni signed when Pamela entered into Defendants' facility. Neither party disputes that the arbitration agreement which Defendants seek to enforce was not signed by Plaintiff Pamela, but rather one of her daughters, April Pieroni. Plaintiff argues that as of April 27, 2019 and/or April 30, 2019, when the Agreement was signed, Pamela had not granted her daughter April a Power of Attorney ("POA") to act on her behalf and bind her to the Agreement, because Pamela had not yet been deemed "incapacitated" under the terms of the POA.

The POA states as follows:

This

Power shall become effective upon my incapacity as determined in accordance with Paragraph 2.1 of this Power.

.
..

2.1.

Determination of Incapacity. For all purposes under this Power, I shall be deemed "incapacitated" if and so long as a court of competent jurisdiction has made a finding to that effect or a guardian or conservator of my person or estate duly appointed by a court of competent jurisdiction is serving, or upon certification by two physicians (licensed to practice under the laws of the state where I am domiciled at the time of the certification) that I am unable properly to care for myself or for my person or property, which certification shall be made by each physician in a written declaration under penalty of perjury. A certified copy of the decree declaring incapacity

or appointing a guardian or conservator, or the physicians' certificate shall be attached to the original of this document and recorded in the same county or counties as the original if the original is recorded.

(Garcia
Decl., Ex. 1.)

Plaintiff has another daughter, Dawn Genis, who brings this action as successor-in-interest to Pamela. In opposition to the Motion, Ms. Genis declares that "to my knowledge, my mother's Durable Power of Attorney for Management of Property and Personal Affairs executed on March 1, 1993 was not in effect as of April 27, 2019 or April 30, 2019 as my mother had not been deemed incapacitated as defined in paragraph 2.1 of the durable power of attorney. As of April 27, 2019 and April 30, 2019, my mother was not deemed incapacitated by a court, my mother did not have an appointed guardian or conservator for her person or estate duly appointed by a court, and my mother was not certified by two physicians in written declarations under penalty of perjury that she was unable to properly care for herself or her person or property."

In reply in support of the Motion, Defendant argued that the basis of Ms. Genis's knowledge on the issue is specious in that she was not the primary agent, April, and is involved in litigation with the primary agent concerning the decedent's estate.

On June 24, 2026, the Court found Ms. Genis's declaration regarding her mother's capacity as of April 27, 2019 or April 30, 2019 to be self-serving and lacking the necessary foundation to be determinative on this key issue, and that Defendants similarly did not offer any proof of Pamela's incapacity. The Court ordered supplemental briefing on the narrow issue of whether Plaintiff Pamela Pieroni was deemed "incapacitated" for the purposes of her Power of Attorney being in effect, at the time of April Pieroni signing the Arbitration Agreement on Plaintiff's behalf.

Defendants' Supplemental Brief

In their supplemental brief, as exhibits attached to Counsel's declaration, Defendants put forth two incapacity determination letters prepared in 2022 by Pamela's physicians, Dr. Nicole Roberts Deppe and Dr. Tarah Brook Browne. Dr. Deppe's letter states: "This is a

letter of incapacity. Ms. Pamela Pieroni was diagnosed with Alzheimer's Dementia July 7, 2017 officially. Since then, her condition has been progressing and she has significant ADL and IADL deficits and is therefore incapable of caring for herself independently. Her daughter, April Pieroni has taken the role of POA." (Healey Decl., Ex. B.) Dr. Browne's letter states: "Pamela D Pieroni is followed by the undersigned in the Geriatric Cognitive Assessment Program. She has a diagnosis of dementia of Alzheimer's disease on Alzheimer's Dementia July 7, 2017 . Because of her medical condition, she lacks the capacity to make medical or financial decisions." (Id., Ex. C.)

Defendants also proffer a "Physician's Report for Residential Care Facilities for the Elderly" prepared by Pamela Wong, dated April 24, 2019, a few days before the subject Arbitration Agreement was executed, which noted that Pamela has been diagnosed with Dementia. (Healey Decl., Ex. D, Box 9.) The Physician's Report also notes Pamela is "Confused/Disoriented," has "Sundowning Behavior," is unable to take and/or manage her own medications, and is unable to manage her own cash resources. (Ibid.) Per the admission agreement for Defendant's community in 2019, Pamela was admitted to the secure memory care unit by her daughter, April Pieroni. (Id., Ex. E.)

Plaintiff's Supplemental Brief

In Plaintiff's Supplemental Brief, Plaintiff contends that the Court cannot rely on the two physician notes because 1) they were signed in 2022, more than three years after the subject 2019 arbitration agreement was signed; and 2) neither were signed under penalty of perjury as required by the POA terms. Plaintiff argues that because Defendants have failed to submit two mandated declarations under penalty of perjury in support of their motion, they have failed to carry their burden to establish that April Pieroni had agency authority to enter into an arbitration agreement on behalf of her mother Pamela Pieroni.

Here, Defendants have failed to meet their burden to establish that the POA's condition precedent for deeming Pamela incapacitated had been satisfied at the time of April signing the Arbitration Agreement. "The scope of a power of attorney depends on the language of the instrument, which is strictly construed." (Tran v. Farmers Grp., Inc. (2002) 104 Cal.App.4th 1202, 1214.) To deem Pamela incapacitated, the POA required the following conditions to be met: "For all purposes under this

Power, I shall be deemed 'incapacitated' upon certification by two physicians which certification shall be made by each physician in a written declaration under penalty of perjury." The Court agrees with Plaintiff that "Defendants attempt to circumvent this requirement with two physician notes (not declarations under penalty of perjury) attached to their supplemental brief as Exhibits B and C which were created on June 28 and June 29, 2022, more than three years after the arbitration agreement was signed on April 27 and April 30, 2019. Moreover, and at the risk of stating the obvious, Pamela Pieroni's diagnosis of Alzheimer's dementia does not satisfy the express requirement of two physician declarations under penalty of perjury."

Further, while Dr. Deppe's letter states that April Pieroni had "taken the role of POA," Dr. Deppe's characterization has no determinative legal effect and lacks foundation.

Defendants additionally argue that the personal representative authorized to bring the instant action would be April Pieroni, not Ms. Genis, as April Pieroni is the executor / trustee of the decedent's estate. However, that issue is not properly before this Court on the instant motion.

Based on the foregoing, there is no arbitration agreement binding Pamela's successor in interest, Dawn Genis, to arbitrate Plaintiff's claims with Defendants.

Thus,
the Motion to Compel Arbitration is DENIED.

2. Motion to Compel Production

Plaintiff
seeks an order compelling the production of the complete records from Defendant Global Regency Senior Care Services LLC pertaining to Plaintiff Pamela Pieroni pursuant to Title 22 of the California Code of Regulations, §87506(c)(l) and California Health and Safety Code §1569.269(21).

Title
22 of the California Code of Regulations, §87506(c)(l) provides that a Residential Care Facility for the Elderly must make a resident's records

available upon the resident's or their designated representative's written consent, and California Health and Safety Code §1569.269(21) mandates that such "records shall be promptly provided, not to exceed two business days."

Plaintiff

argues that Plaintiff first requested these records on January 27, 2026, and Defendants failed to comply, in violation of California Health and Safety Code §1569.269(21) two business days deadline. Plaintiff further contends that these records are necessary to defend against Defendants' Motion to Compel Arbitration, and they have been wrongfully deprived of such records.

Defendants

argue that Dawn Genis lacks standing to bring this action on her mother's behalf and lacks standing to make the instant demand for production of records because Dawn Genis was not Pamela's primary agent via the Power of Attorney that existed during her mother's life, and she is not the personal representative of Pamela's estate now that Pamela is deceased.

In

reply, Plaintiff argues that Welfare & Institutions Code § 15657.3(d) specifically allows a deceased elder's successor in interest to commence or maintain an elder abuse action where the personal representative refuses to do so, as follows: "If the personal representative refuses to commence or maintain an action. . .the persons described in subparagraphs (A), (B), and (C) of paragraph (1) [the decedent's successor in interest] shall have standing to commence or maintain an action for elder abuse." Plaintiff puts forth that Pamela's personal representative, April Pieroni, is aware of the Elder Abuse matter before this Court, is aware that she is not a party to this matter, and April Pieroni does not support the claim. (Baladejo Decl., Ex. 2, paragraph 25, verified Objection to Dawn Genis' Petition for Removal of Trustee filed by April Pieroni, without attachments.)

Here,

Defendants fail to establish a basis for withholding Pamela's records. Whether Plaintiff has standing generally is not properly before this Court on this Motion as Defendants have not moved to dismiss on this basis, instead making this argument in opposition only. As to Dawn Genis's standing to obtain Pamela's records, Defendants argue that consent to the production would need to be obtained by April Pieroni, the legal representative of the decedent/decedent's estate. However, Dawn Genis can maintain an elder abuse action under Welfare

& Institutions Code § 15657.3(d) as successor in interest to Pamela because Plaintiff has established that Pamela's personal representative, April Pieroni, refuses to do so: "Dawn Genis (Petitioner herein) in a separate civil case filed February 5, 2026 by Dawn Genis in Case Number 26LBCV00304, is pursuing a claim against the deceased settlor's former residential care facility. April K. Pieroni, Successor Trustee of the trust, is not a party to the claim and generally does not support the claim. April K. Pieroni, as an individual, is not a party to the claim and generally does not support the claim." (Baladejo Decl., Ex. 2, paragraph 25.)

While

Defendants further argue that consent to the record production would need to be obtained by April Pieroni in her capacity as Pamela's primary Agent under the POA, the Court has already found that the POA was not in effect during Pamela's residency with Defendant, and it cannot be in effect now or in the future due to the fact that Pamela is deceased.

It

is also of note that Plaintiff should have received these documents prior to the Motion to Compel Arbitration hearing, as they were crucial to Plaintiff's opposition. Based on the foregoing, there is no valid reason for Defendants to continue withholding Pamela's records.

Thus,

Plaintiff's Motion to Compel Production of Pamela Pieroni's residential records is GRANTED.

CONCLUSION

Defendants' Motion to Compel Arbitration is DENIED.

Plaintiff's

Motion to Compel Production of Pamela Pieroni's residential records is GRANTED.

Defendants are ordered to produce to Plaintiff the entirety of their file on Pamela Pieroni within five (5) days of this Order.